

STATE OF NEW YORK

2053--A

2025-2026 Regular Sessions

IN SENATE

January 15, 2025

Introduced by Sens. WEBB, MAY, HARCKHAM -- read twice and ordered printed, and when printed to be committed to the Committee on Environmental Conservation -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the environmental conservation law and the public lands law, in relation to permits and financial security for reclamation for salt mining beneath a lake

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

- 1 Section 1. Subdivisions 11 and 12 of section 23-2711 of the environ-
2 mental conservation law, as added by chapter 166 of the laws of 1991,
3 are amended and two new subdivisions 11-a and 14 are added to read as
4 follows:
- 5 11. Permits issued pursuant to this title shall be renewable. A
6 complete application for renewal shall contain the following:
- 7 (a) completed application forms;
- 8 (b) an updated mining plan map consistent with paragraph (a) of subdivi-
9 sion one of section 23-2713 of this title and including an identifica-
10 tion of the area to be mined during the proposed permit term;
- 11 (c) a description of any changes to the mined land-use plan, which
12 shall include, with respect to a permit for salt mining beneath a lake,
13 an updated reclamation plan of surface and subsurface affected land
14 accounting for any differences in circumstances since the reclamation
15 plan was last approved by the department; [and]
- 16 (d) an identification of reclamation accomplished during the existing
17 permit term; and
- 18 (e) a thirty-year monitoring plan with respect to a permit for salt
19 mining beneath a lake of all affected lands, surface and subsurface.
- 20 11-a. Notwithstanding any provision of this section to the contrary,
21 with respect to salt mining beneath a lake where no environmental
22 impact statement has been prepared pursuant to the environmental quali-

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 ty review requirements of article eight of this chapter with
2 respect to such mining within the preceding twenty years, any permit
3 renewal application shall:

4 (a) not constitute a minor project within the meaning of article
5 seventy of this chapter;

6 (b) be treated as an application for a new permit;

7 (c) constitute an action requiring environmental quality review pursu-
8 ant to article eight of this chapter; and

9 (d) be deemed an action that is likely to require the preparation of
10 an environmental impact statement pursuant to subparagraph (i) of para-
11 graph (c) of subdivision two of section 8-0113 of this chapter.

12 12. The procedure for transfer of a permit issued pursuant to this
13 title is the procedure for permit modification pursuant to article
14 seventy of this chapter; provided, however, and notwithstanding subdivi-
15 sion thirteen of this section or any other provision of this section to
16 the contrary, any transfer or modification of a permit to engage in salt
17 mining activities beneath a lake shall constitute a material modifica-
18 tion of the permit and, if no environmental impact statement has been
19 prepared pursuant to the environmental quality review requirements of
20 article eight of this chapter with respect to such mining within the
21 preceding twenty years, such transfer or modification shall:

22 (a) not constitute a minor project within the meaning of article
23 seventy of this chapter;

24 (b) be treated as an application for a new permit;

25 (c) constitute an action requiring environmental quality review pursu-
26 ant to article eight of this chapter; and

27 (d) be deemed an action that is likely to require the preparation of
28 an environmental impact statement pursuant to subparagraph (i) of para-
29 graph (c) of subdivision two of section 8-0113 of this chapter.

30 14. As soon as practicable and in any event within one hundred eighty
31 days of the effective date of this subdivision, the department shall
32 prepare an environmental study with respect to any salt mining beneath a
33 lake if no environmental impact statement has been prepared within the
34 preceding twenty years with respect to such mining. Any holder of a
35 permit to mine salt beneath a lake shall comply with all reasonable
36 requests of the department in connection with preparation of such an
37 environmental study. The preparation of such environmental study shall
38 include a comprehensive review of the cumulative effects of such
39 mining, including consideration of the effects of past mining and their
40 potential future environmental impacts, in the short-term and the long-
41 term; any adverse environmental effects which cannot be avoided should
42 the mining continue; alternatives to the continuation of mining; any
43 irreversible and irretrievable commitments of resources which would be
44 involved in the continued operation; mitigation measures proposed to
45 minimize the environmental impact; the present and future effects of
46 continued action on public drinking water supplies; the present and
47 future effects of continued action on the recreational use and economic
48 activity supported by the lake, and such other information consistent
49 with the purpose of this subdivision as may be appropriate. In conduct-
50 ing such study, the department shall engage in a robust public partic-
51 ipation process to ensure that the concerns of all stakeholders are
52 heard and inform the final study. The initial findings of the study
53 shall be made available to the public on the department's website no
54 later than one hundred twenty days after the effective date of this
55 subdivision, and shall be subject to a thirty day public comment period.
56 The department shall conduct at least one public hearing during the

thirty day comment period for review of the initial findings. The final study shall respond to and, if appropriate, incorporate comments received from the public and be made available to the public on the department's website in unredacted form.

§ 2. Section 23-2715 of the environmental conservation law, as amended by chapter 166 of the laws of 1991, subdivision 6 as amended by chapter 60 of the laws of 1993, is amended to read as follows:

§ 23-2715. Financial security for reclamation.

1. Before the department may issue a permit, the applicant, unless exempt, shall furnish financial security (a) to ensure the performance of reclamation as provided in the approved mined land-use plan, (b) to cover any damages directly or indirectly resulting from salt mining activities beneath a lake, including, but not limited to, those resulting from collapse or water contamination, and (c) naming the state as beneficiary. Financial security shall be in the form of a bond from a corporate surety licensed to do business as such in the state or any other form the department may deem acceptable. Any interest accruing as a result of such security shall be the exclusive property of the permittee.

2. The department shall determine the amount, condition, and terms of the financial security. The amount shall be based upon the estimated cost of reclaiming the affected land and the estimated liability from potential damages directly or indirectly resulting from salt mining activities beneath a lake, including, but not limited to, those resulting from collapse or water contamination, which shall be based on information contained in the permit application, the environmental quality review conducted pursuant to article eight of this chapter and any environmental study conducted pursuant to subdivision fourteen of section 23-2711 of this title and upon such information as an investigation by the department may disclose. At a minimum, the department shall consider the particular circumstances of the mine and mining activities in making determinations pursuant to this subdivision related to financial security amounts required to cover potential damages directly or indirectly resulting from salt mining activities beneath a lake, including, but not limited to, those resulting from collapse or water contamination. Consideration in such circumstances shall include, but not be limited to:

(a) those factors considered in determining the amount of financial security to ensure performance of reclamation;

(b) geologic, hydrologic, and other environmental conditions;

(c) the presence of any environmentally sensitive areas or resources;

(d) the presence of persons and property; and

(e) local economic impacts of potential damages.

The department shall engage an independent third party with the necessary actuarial, conservation finance and/or other appropriate expertise either to make a determination with respect to such potential damages directly or indirectly resulting from salt mining activities beneath a lake or to review the determination of the department with respect thereto and, in the case of a review, the department shall incorporate the appropriate recommendations by such independent third-party reviewer into its final determination.

3. The financial security shall remain in full force and effect until the department has approved the reclamation and determined that there is no continuing risk of damages directly or indirectly from salt mining activities beneath a lake, including, but not limited to, those resulting from collapse or water contamination. At the discretion of the

1 department, the permittee may secure the release of that portion of the
2 financial security for affected land on which reclamation has been
3 completed and approved by the department.

4 4. If the financial security shall for any reason be cancelled, within
5 thirty days after receiving notice thereof, the permittee shall provide
6 a valid replacement under the same conditions as described in this
7 section. Failure to provide a replacement bond within such period may,
8 at the discretion of the commissioner, result in the immediate suspen-
9 sion of the mining permit by the department.

10 5. If a permit is suspended or revoked, the department may require the
11 permittee to commence reclamation upon thirty days notice.

12 6. If the permittee fails to commence or to complete the reclamation
13 as required, the department may attach the financial security furnished
14 by the permittee. In any event, the full cost of completing reclamation
15 and any damages directly or indirectly resulting from salt mining activ-
16 ities beneath a lake, including, but not limited to, those resulting
17 from collapse or water contamination shall be the personal liability of
18 the permittee and/or the person engaged in mining and the department,
19 acting by the attorney general, may bring suit to recover all costs to
20 secure the reclamation and damages directly or indirectly resulting from
21 salt mining activities beneath a lake not covered by the financial secu-
22 rity. The materials, machinery, implements and tools of every
23 description which may be found at the mine, or other assets of the
24 permittee and/or the person engaged in mining shall be subject to a lien
25 of the department for the amount expended for reclamation of affected
26 lands, and for making whole any parties suffering any damages directly
27 or indirectly resulting from salt mining activities beneath a lake, and
28 shall not be removed without the written consent of the department. Such
29 lien may be foreclosed by the attorney general in the same manner as a
30 mechanic's lien. Any and all moneys recovered shall be deposited in the
31 environmental regulatory account pursuant to section 72-1009 of this
32 chapter.

33 7. Political subdivisions, municipalities, the United States and any
34 of its agencies and agencies of the state shall be exempt from the
35 requirements of this section.

36 8. Any permittee which has furnished a financial security with respect
37 to salt mining beneath a lake which is not in compliance with the
38 requirements of this section on the effective date of this subdivision
39 shall be in violation of this section if such financial security is not
40 brought into compliance within six months of such effective date.

41 § 3. Section 81 of the public lands law is amended by adding a new
42 subdivision 3 to read as follows:

43 3. Notwithstanding subdivisions one and two of this section, with
44 respect to a permit, consent, or lease issued with respect to salt
45 mining activities beneath a lake, the duration of such permit, consent,
46 or lease shall not be longer than the duration for which mining is
47 allowable under the permit issued by the department of environmental
48 conservation pursuant to title twenty-seven of article twenty-three of
49 the environmental conservation law in respect of such mining.

50 § 4. Severability. If any provision of this act, or any application of
51 any provision of this act, is held to be invalid, that shall not affect
52 the validity or effectiveness of any other provision of this act, or of
53 any other application of any provision of this act, which can be given
54 effect without that provision or application; and to that end, the
55 provisions and applications of this act are severable.

1 § 5. This act shall take effect on the thirtieth day after it shall
2 have become a law; provided, however, that section two of this act shall
3 take effect on the ninetieth day after it shall have become a law.
4 Effective immediately, the addition, amendment and/or repeal of any
5 rule or regulation necessary for the implementation of this act on
6 its effective date are authorized to be made and completed on or before
7 such effective date.